

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

SUPPLEMENTAL MOTION FOR CONFIDENTIAL TREATMENT

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) moves pursuant to 46 C.F.R. §§ 502.5(b), 502.69, and 502.141(j)(1) for the confidential treatment of the non-public version of Complainant’s Reply Brief in Support of Motion for Summary Decision (“Reply Brief”), Complainant’s Reply in support of its Statement of Undisputed Material Facts (“IMCC Reply SUMF”), and Reply Appendix. IMCC further seeks confidential treatment of the non-public version of Complainant’s Motion to Strike Untimely Declarations (“MTS”), and exhibits submitted therewith.

On June 9, 2021, the Presiding Officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality (“Order”), which provides for the confidential treatment of certain materials in this proceeding. On April 29, 2022, IMCC moved for confidential treatment

for portions of its Motion for Summary Decision, its Statement of Undisputed Material Facts, and Appendix in support thereof. On May 27, 2022, IMCC further moved for confidential treatment for portions of its Response to Respondent's Motions for Summary Decision, its Responses to Respondents' Statement of Material Facts and Supplemental Statement of Material Facts, and Supplemental Appendix.

On June 13, 2022, IMCC filed a Motion for Confidential Treatment requesting confidential treatment for portions of IMCC's Reply Brief, IMCC's Reply SUMF, and the MTS and continued confidential treatment for the Reply Appendix Documents and MTS Exhibits that have been designated as Confidential or Confidential Outside Counsel Eyes Only ("OCEO") by IMCC, the Respondents, or non-party motor carriers pursuant to the Order. The June 13 Motion described the categories of information and documents for which confidential treatment was requested.

On June 16, 2022, Respondents' counsel designated additional information as confidential under the Order. Those additional designations are highlighted in green in the accompanying Reply Brief and IMCC Reply SUMF. Accordingly, IMCC respectfully submits this Supplemental Motion for Confidential Treatment. Respondents consent to both the June 13 Motion and this Supplemental Motion.

Pursuant to Rule 502.5(b), IMCC is providing with this Supplemental Motion the confidential version of its Reply Brief and the IMCC Reply SUMF, which incorporate Respondents' new designations. The information IMCC seeks permission to redact in the public version of the Reply Brief and IMCC Reply SUMF highlighted, including images.

Respectfully submitted,

DATED: June 16, 2022

/s/ W. Stephen Cannon

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CERTIFICATE OF SERVICE

I certify that, on June 16, 2022, a true and correct copy of the foregoing Supplemental Motion for Confidential Treatment was filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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